

B. White
Date: 7/2/2014

EDUCATION AFFILIATION AGREEMENT

Agreement No. EA14-CheyF&R

THIS AGREEMENT, made and entered into as of the date set forth on the signature page below, by and between Laramie County Community College (*hereinafter referred to as LCCC*), whose address is 1400 East College Drive, Cheyenne WY, 82007, and the City of Cheyenne Fire & Rescue Department (*hereinafter referred to as Provider*) whose address is 2101 O'Neil Avenue, 3rd Floor, Fire Department Administration, Cheyenne, WY 82001. LCCC and Provider shall be referred to individually as "Party" and collectively as "Parties".

WITNESSETH:

WHEREAS, LCCC desires certain services, the scope of which is more fully described in Articles IV, V and VI and Provider represents and warrants that it has the proper licensing, skill and expertise to provide such services;

WHEREAS, LCCC has an established EMT program and offers a degree in the field of emergency medical services;

WHEREAS, LCCC desires to provide to its students hands-on education and learning experiences through the application of knowledge and skills in actual patient-centered situations; and,

WHEREAS, Provider is willing to provide hands-on education and learning experiences such situations;

NOW, THEREFORE, The Parties mutually agree to cooperate in the provision of opportunities for LCCC students to acquire clinical experience in observation and performance of patient care upon the terms and conditions set forth herein:

I. DEFINITIONS

A. "Clinical Experience" means a program of study as part of LCCC's course or degree requirements, conducted in cooperation with the Provider, whereby students receive supervised experience and instruction in a professional setting under the direct supervision of a qualified clinical instructor. Clinical Experience shall be the same as clinical training. Nothing in this definition shall be construed or interpreted to waive the Provider's governmental immunity or to alter, amend, modify or expand the extent to which the Provider may be subjected to liability for any of its operations under law.

B. "Site Supervisor" means that person qualified, employed or retained by the Provider as responsible for the development and administration of the Clinical Experience affiliation with LCCC, jointly approved by both Parties.

C. "Student" means a person enrolled through LCCC who is to perform the Clinical Experience and registered in the appropriate certification or degree program.

D. "LCCC Supervisor" means the person employed by LCCC to serve at a qualified clinical facility liaison and is responsible for the development and administration of this Clinical affiliation with the Provider. Said supervisor shall be jointly approved by both Parties.

E. "Program" means the course of academic requirements necessary to obtain the appropriate certification or degree.

F. "Program Participant" means a student, staff, faculty or support personnel related to Program.

II. AGREEMENT DOCUMENTS

The Agreement documents consist of the Agreement between LCCC and Provider (*hereinafter the Agreement*), all attachments, exhibits or other documents hereby incorporated by reference and made a part of this Agreement. Unless specifically identified in the Agreement, the Agreement documents do not include any other documents not described herein, any conversations, other memoranda, or other matter between the Parties relating to the subject of this Agreement, oral or written. The Parties agree to comply with the Agreement Documents.

III. TERM OF AGREEMENT

This Agreement shall commence as of the below Execution Date for an initial term of three (3) years. Notwithstanding the above, this Agreement may be terminated by either Party, without cause, upon one hundred eighty (180) days prior written notice, but not unreasonably terminated during an academic term so that students presently enrolled will be allowed to complete the educational requirements of the respective program. A student(s) clinical experience may be suspended immediately in the event of an emergency if the Parties believe that the life, health, or safety of any person may be endangered if such action is not taken.

IV. REPRESENTATIONS AND RESPONSIBILITIES OF LCCC

LCCC shall be responsible for the implementation and operation of the clinical component of its program at the designated facility, which Program shall be pre-approved by Provider. Specific responsibilities shall include:

A. Provide, implement and maintain the respective program related to the student experience including: (i) establish & evaluate classroom theory and practical instruction; (ii) coordinate placement, assignment and rotation of students; (iii) administer training, education and other information for the students; (iv) provide students with a grade and appropriate credit hours for completing clinical training; (v) maintain ultimate control over academic aspects of clinical experience; and,

B. Performance of such other duties as may from time to time be agreed to via written instrument between LCCC and Provider; and,

C. Require each student to sign a "Student Confidentiality & Responsibility Statement" (*Exhibit "A"*).

D. Maintain sole responsibility for developing and maintaining the educational curriculum, establishing objectives and standards of clinical training experiences, offering programs eligible for accreditation, and all other matters pertaining to acquiring the educational goals and needs of LCCC.

E. Provide vaccines and documentation (*upon request*) of measles and rubella titer showing immunity or record of MMR vaccine less than ten (10) years old, Hepatitis B vaccine series, a signed declaration statement, or Anti-HBs or HbsAB and PPD (mantoux) less than twelve (12) months old, or an annual Tuberculosis questionnaire.

F. Inform Program Participants of their responsibility to provide any transportation, meals and lodging related to the Clinical Experience.

G. Advise faculty and students assigned to Provider's facilities of their responsibility for complying with the policies, rules and regulations of Provider.

H. In entering this Agreement, LCCC agrees to defend, hold harmless, and indemnify the City of Cheyenne, its officials, employees, authorized agents and volunteers against any and all claims and costs, including attorney's fees, arising during or resulting from LCCC's performance of the Agreement, and shall carry insurance as set forth in these contract documents. LCCC acknowledges its understanding of this paragraph and realizes it may have financial responsibility to the City. The City does not waive any applicable defenses and expressly reserves the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 139-101, *et seq.*, for any claim arising out of performance of this Agreement.

I. Provide general comprehensive liability insurance in the amount of one million dollars (\$1,000,000) per occurrence and two million dollars (\$2,000,000) aggregate, covering bodily injury and property damage liability with a professional liability endorsement including "malpractice" coverage for faculty and students of LCCC while they are present in or upon any facilities, vehicles or equipment of the Provider pursuant to this Agreement. In addition, LCCC will provide worker's compensation coverage for each student and faculty member that participates in any services provided by Provider pursuant to this Agreement.

i. LCCC shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policy and shall provide the City with a copy of the endorsement.

ii. LCCC shall provide the City with a certificate of insurance acknowledging the above-state coverage prior to beginning any work under this Agreement.

iii. It is understood and agreed that this policy is primary and not contributory. All insurance certificates provided by LCCC must include a clause stating that the insurance may not be canceled, amended, or allowed to lapse without at least

thirty (30) days advance written notice to the City of Cheyenne. In addition, LCCC shall provide the City with a copy of the insurance policy and/or policy endorsement listing the City of Cheyenne as an additional insured. The City's failure to request or review such policy, endorsement, and certificate shall not affect the City's rights or LCCC's obligation hereunder.

iv. Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A- (excellent).

J. Agrees to conduct a background investigation for its faculty and students participating in the respective Program in a similar manner and in accordance with the policies required of Provider employees. The background check shall include a criminal background check that complies with the federal and state laws and regulations and Provider policy to ensure individuals are suitable for a patient care environment.

K. Agrees to require Program Participants to undergo pre-clinical drug screening and subsequent random screening in a similar manner and under policies similar to those affecting employees of the Provider.

V. REPRESENTATIONS AND RESPONSIBILITIES OF PROVIDER

A. Shall provide professional instruction for appropriate field training and clinical experiences at designated facilities or field operational areas.

B. Subject to the limitations of the Provider's budget, provide and pay for necessary physical facilities, clinical equipment, materials, supplies, or other expenses associated with the provision of life support and paramedic services to the citizens of the City of Cheyenne. Nothing in this Sub-section shall be construed or interpreted in any manner as imposing any financial obligation on the Provider other than to operate a professional fire and rescue department in accordance with its annual budget.

C. Shall provide each student with access to a planned program of hands-on experience, consistent with the educational and accreditation objectives per the respective program established by LCCC.

D. Shall provide a designated staff member to serve as a liaison with LCCC program representatives to observe and assist with various aspects of patient care.

E. Shall provide liability coverage in accordance with the certificate of liability coverage issued by the Wyoming Association of Risk Management which is attached hereto as *Exhibit B*.

F. Will provide all assigned students with an orientation to Provider's facilities, rules and regulations, confidentiality laws, and procedures with regard to patient and medical records.

G. Provider may immediately remove from any facility, vehicle, or other public space or place owned or operated by the Provider any student(s) who pose an immediate threat or danger to personnel or to the quality of medical services or for unprofessional behavior. Such removal shall be documented via written instrument and be forwarded to LCCC for review.

H. Shall maintain ultimate responsibility for patient care and treatment within the scope of the life support and paramedic services which the Provider is privileged to provide. Nothing in this definition shall be construed or interpreted to waive the Provider's governmental immunity or to alter, amend, modify or expand the extent to which the Provider may be subjected to liability for any of its operations under law.

I. Shall make its facilities, vehicles, and equipment reasonably available for the educational purposes requested by LCCC, provided however, that the determination whether and such any such facility, vehicle, or equipment is suitable for LCCC's purposes shall be determined by LCCC. In the event that LCCC determines that the Provider's facilities, vehicles, or equipment are not suitable, LCCC may terminate this Agreement, but shall have no right to bring any claim, demand or cause of action against the Provider or to subject the Provider to any liability other than those which arise in normal course. Nothing in this Sub-section shall be construed or interpreted in any manner as imposing any financial obligation on the Provider other than to operate a professional fire and rescue department in accordance with its annual budget.

J. Shall determine the number of students that will be allowed to participate in clinical assignment at facility.

VI. MUTUAL REPRESENTATION AND RESPONSIBILITIES

The Parties shall cooperate to fulfill the following mutual representations and responsibilities:

A. Students shall be treated as trainees who have no expectation of receiving compensation or future employment from Provider or its designated facility.

B. Any courtesy appointments to faculty or staff by either Provider or LCCC or a designated facility shall be without entitlement of the individual to compensation or benefits for the appointed Party.

C. Reserves the right to withdraw from the Clinical Program any student whose health (*given reasonable accommodation*) or performance is a detriment to patient well-being or to the achievement of the stated objectives of the respective Program and complies with applicable due process per respective Program discipline.

D. Affirms that they have an Exposure Plan Protocol which meets OSHA requirements for an infection control program.

E. Will establish the education objectives for the affiliation, devise methods for their implementation, and evaluate their effectiveness.

F. Will not unlawfully discriminate against any employee, applicant, or student enrolled in their respective program because of race, color, creed,

religion, age, handicap, sex, sexual orientation, gender identity, ancestry, veteran's status or national origin.

VII. PAYMENT

No payment shall be made to either Party by the other Party as a result of this Agreement.

VIII. REPRESENTATIVES

All notices, communications, correspondence and transmittals regarding this Agreement shall be done so via written instrument to the below designated Agreement representatives.

LCCC's representative for legal and contractual matters is Jerry L. Harris, (307) 778-1280, 1400 East College Drive, Cheyenne WY 82007.

LCCC's program representative is Patrick Currie, (307) 778-1149, 1400 East College Drive, Cheyenne WY 82007.

Provider's representative for this Agreement is Chief Jim Martin (307) 637-6311, whose address is 2101 O'Neil Avenue, Cheyenne, WY 82001.

IX. OTHER PROVISIONS

This Agreement shall include additional provisions as applicable to the specific scope of services and/or work.

A. **Amendments:** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the Parties to this Agreement shall be incorporated by written instrument, executed and signed by all Parties to this Agreement.

B. **Americans with Disabilities Act:** The Provider shall not discriminate against a qualified individual with a disability and shall comply with the Americans with Disabilities Act, P.L. 101-336, 42 U.S.C. 12101 *et seq.*, and any properly promulgated rules. There shall be no discrimination on the basis of race, national origin, religion, creed, sex, sexual orientation, gender identity, age, veteran status or handicap in either the selection of students for participation in the Program, or as to any respect of the clinical training, provided however, that with respect to the handicap, the handicap must not be such as would, even with reasonable accommodation, in and of itself preclude the student's effective participation in the Program. LCCC assures that, at all times during the performance of any resulting contract, no qualified individual with a disability shall, by reason of that disability, be excluded from participation in, or be denied benefits of, services, programs, or activities performed by LCCC for the benefit of the Provider.

C. **Applicable Law/Venue:** The Parties mutually understand and agree the construction, interpretation, and enforcement of this Agreement shall be governed

by the laws of the State of Wyoming. In the event a dispute arises between the Parties from or concerning this Agreement or the subject matter hereof, any suit or proceeding at law or inequity shall be brought in Laramie County Wyoming. The foregoing provisions of this paragraph are agreed by the Parties to be a material inducement to both Parties in executing this Agreement. This provision is not intended nor shall it be construed to waive LCCC's governmental immunity or the Provider's governmental immunity as provided in WYO. STAT. ANN. § 1-39-101 *et seq.*, and all other applicable laws.

D. **Compliance with Law:** The Provider and LCCC shall keep informed of and comply with all applicable federal, state and local laws and regulations in the performance of this Agreement.

E. **Confidentiality:** Subject to the obligation to disclose documents which may be imposed on the Parties by the Wyoming Public Records Act and other applicable laws, each Party and its employees and agents shall keep confidential all knowledge, information and documents entrusted to its care by the other Party. Neither Party nor any of its employees or agents shall disclose any knowledge, information or documents entrusted to it or them by the other Party to any person, firm or corporation other than the person, firm or corporation designated by the other Party. Knowledge, information and documents entrusted by each Party to the other Party may include, but are not limited to, the names of vendors and the terms and conditions (*including financial information*) with vendors, the names of patients and the terms and conditions (*including financial information*) of agreements with, or for the benefit of, patients, medical records and information, trade secrets, proprietary information, non public information, clinical, marketing, personnel and administrative policies, procedures, manuals and reports, written agreements, contracts, including this Agreement, and other assets of either Party.

F. **Force Majeure:** Neither Party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming Party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the Party failing to perform immediately notifies the other Party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays. This provision shall not be effective unless the failure to perform is beyond the control and without the fault or negligence of the nonperforming Party.

G. **Non-Exclusive Agreement:** This Agreement is not exclusive. Accordingly, either Party shall have the right to enter into one or more agreements relating to the same or similar matters as are covered by this certain Agreement, and execution by either Party of such agreements shall not constitute a breach of this Agreement.

H. **Relationship of the Parties:** Each Party to this Agreement, in the performance of this Agreement, shall act in an individual capacity and not as agents, employees, partners, joint ventures, students or associates of one another. The employees, students or agents of one Party shall not be deemed or construed to be the employees, students or agents of the other Party for any purposes whatsoever.

I. **Severability:** If any provision of this Agreement is held to be invalid or unenforceable for any reason, this Agreement shall remain in full force and effect in accordance with its' terms disregarding such unenforceable or invalid provision.

J. **Sovereign/Governmental Immunity.** Neither Party waive its Governmental/Sovereign Immunity by entering into this Agreement and each Party specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to WYO. STAT. ANN. § 1-39-101 *et seq.*, and all other applicable laws. Both Parties fully retain all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement. Designations of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of sovereign immunity. The Parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either Party, except that any ambiguity as to sovereign immunity shall be construed in favor of sovereign immunity.

X. ASSIGNMENT

Neither this Agreement nor any of the rights and obligations of the Provider shall be assigned or transferred in whole or in part without the prior written consent of LCCC.

XI. TERMINATION

A. **Notice.** This Agreement may be terminated upon six (6) months written notice of either Party, but not unreasonably terminated during an academic term so that students presently enrolled will be allowed to complete the educational requirements of the respective program. It is agreed that any and all termination notices issued by either Party shall be transmitted via signed written instrument, and shall be deemed to have been given upon the mailing thereof, postage prepaid, by certified or registered mail, return receipt requested, addressed to the other Party at the address set forth in Agreement Article VIII, or at such other address as either Party shall designate to the other Party in writing hereafter.

XII. ENTIRE AGREEMENT

This Agreement sets forth the entire agreement between the Parties with respect to the subject matter hereof and shall govern the respective duties and obligations of the Parties. This Agreement and all incorporated documents by reference contain the entire understanding of the Parties with respect to the subject matter hereof and supersedes all

prior agreements, oral or written, and all other communications between the Parties relating to such subject matter.

XIII. AGREEMENT ATTACHMENTS AND EXHIBITS

The following Attachments and Exhibits are incorporated herein by reference and attached hereto and shall become a part of this Agreement for all purposes:

Exhibit "A"	Student Confidentiality & Responsibility Statement
Exhibit "B"	Certificate of Liability Coverage

XIV. SIGNATURES

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement in triplicate as of the date written below.

City of Cheyenne
Fire and Rescue Department

Laramie County Community College
("LCCC")

By: _____
Signature

By: _____
Signature

Name: Richard L. Kaysen

Name: Joe Schaffer, Ed.D.

Date: _____

Date: _____

Title: Mayor of the City of Cheyenne

Title: President of LCCC

ATTEST:

(SEAL)

Carol Intlekofer, City Clerk

EXHIBIT "A"

Student Confidentiality & Responsibility Statement

The undersigned hereby acknowledges his/her responsibility under applicable Federal law (HIPAA and FERPA) and the Agreement between Laramie County Community College (LCCC) and the respective clinical facility (*Provider*) to keep confidential any information regarding facility patients. The undersigned agrees, under penalty of law, not to reveal or disclose to any person or persons except authorized clinical staff and associated personnel any specific information regarding any patient and further agrees not to reveal or disclose to any third party any confidential information of the respective clinical facility, except as required by law or as authorized via written instrument by same.

During the term of this Agreement, undersigned may have access to and become acquainted with confidential information and trade secrets of a facility, including information and data relating to contracts and accounts, clients, patients, patient groups, billing practices and procedures, business techniques and methods, strategic plans, operations and related data. All trade secrets are the property of the respective facility and used in the course of their business, and shall be proprietary information protected under the applicable law. The undersigned shall not reveal or disclose to any person or entity, directly or indirectly, at any time, any trade secrets, or use any trade secrets other than in the course of the undersigned's clinical learning experience at the designated clinical facility. All documents prepared by the undersigned, or trade secrets that might be given to undersigned in the course of the clinical training experience are the exclusive property of the respective clinical facility, and, without the prior written consent of the respective facility, shall not be removed from the their premises.

For and in consideration of the benefit provided to me in the form of experience in the evaluation and treatment of patients through a "clinical learning experience", I agree to assume the risks and to be solely responsible for any injury or loss I sustain while participating in the Program operated by Laramie County Community College at each designated training facility (or facilities) except to the extent such injury or loss is due to the negligence or willful misconduct of others during the clinical experience. While participating in the clinical program, the students:

- A. Shall not drive or operate any Provider vehicle or apparatus; and,
- B. Shall not directly perform or provide any direct emergency medical assistance or services to any person, but may assist Provider personnel in the rendering of such services; and,
- C. Shall be under the direct supervision and control of the Provider; and,
- D. Shall perform only tasks and duties assigned by Provider; and,
- E. Shall wear all appropriate safety gear and equipment as directed by Provider; and,
- F. Shall conform to all policies & procedures, safety rules, directives, and regulations of the Provider, and all local, state and federal laws and regulations;
- G. Shall be solely responsible for the cost of obtaining current vaccines as required by law and the Provider's Facility regulations, including documentation proof of said vaccines.
- H. Shall not receive any compensation for services rendered during the performance of this clinical experience.

Program Participant – Printed Name

Program Participant – Signed Name

Dated this ____ day of _____, 20__.



CERTIFICATE OF LIABILITY COVERAGE

The Wyoming Association of Risk Management (WARM), a joint-powers liability pool, provides comprehensive general liability and automobile liability coverage to the City of Cheyenne, Wyoming, subject to the following limitations:

- \$250,000 per claimant as listed in W.S. 1-39-118.
- \$500,000 per occurrence as listed in W.S. 1-39-118.
- \$10,000,000 per claim for claims brought solely under Federal Law as provided in W.S. 1-39-118(b)(ii).
- \$10,000,000 per claim for all other claims not brought under the Wyoming Governmental Claims Act.
- The City of Cheyenne and WARM preserve all immunities under Wyoming law.
- The terms and conditions of the WARM coverage document also restrict coverage.
- The coverage period is July 1, 2014 through July 1, 2015.

Certified:

Joseph Constantino
Executive Director

